

Tentative Rulings for September 2, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306850	BALDI VS BALDI BROS., INC.	MOTION TO TAX COSTS

Tentative Ruling: Plaintiff's Motion to Tax Costs is denied.

Plaintiff brings this motion pursuant to Cal. Rules of Court ("CRC"), Rule 3.1700, which provides that a prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of the mailing of the entry of judgment An extension for filing this document can be given by the court or through an agreement by the parties. "[T]he court may extend the times for serving and filing the cost memorandum or notice of motion to strike or tax costs for a period not to exceed 30 days." (*Id.* at (b)(3).)

The losing party may dispute any or all of the items in the prevailing party's costs memorandum. (CRC, Rule 3.1700(b)). Technically, a motion to strike challenges the entire costs bill whereas a motion to tax challenges particular items or amounts. But, the terms are often used interchangeably and there is no difference in the procedural rules. (CRC, Rule 3.1700(b).)

Unlike the costs memorandum, a motion to tax costs based on factual matters must be supported by declarations. (*County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113-1114.) For instance, where "reasonableness" is challenged, conclusory allegations that the item was "neither necessary nor reasonable" do not satisfy the objecting party's burden. (*Id.*; *Jones, supra.* at 1266.) If the items on their face appear to be proper charges, the verified costs memorandum is prima facie evidence of their propriety, and the burden is on the opposing party to show that they were not reasonable or necessary. (*Ladas v. California State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776; *Jones, supra.* at 1266.)

Pursuant to CCP §1033.5(c)(1), certain items are allowable costs, including filing and motion fees, service of process fees, and deposition costs. Costs must be both reasonable in amount and reasonably necessary to the conduct of the litigation. (CCP §1032; §1033.5(c)(2) and (3).) To obtain a costs award, the prevailing party must serve and file a memorandum of costs. (CRC, Rule 3.1700(a).) Supporting documentation such as bills or invoices are not required, unless costs are put in issue by a motion to tax costs. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.)

CCP §1033.5 also provides a lists of costs that are allowable and those that are not. CCP §1033.5(c)(4) provides that any items not identified as allowable and not specifically identified as prohibited, may be permitted at the Court's discretion. "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (CCP §1033.5(c)(2).)

In ruling on a motion to tax costs, the court must first determine "whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show [the cost] to be unnecessary or unreasonable."

(*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) If an item is not expressly allowed under the statute, the burden is on the party seeking the expense to provide evidence that the fees are reasonable or necessary. (*Id.* at 132.)

Item No. 1 (Filing Fees):

Under CCP § 1033.5(a)(1), filing fees are allowable costs, which must also be reasonably necessary to the conduct of the litigation and reasonable in amount. (CCP § 1033.5(c).) Plaintiff challenges the entire amount of \$1,100.00 arguing that these costs were somehow duplicative of the costs claimed by the Individual Defendants. However, BBI points out in the Opposition that it was separately represented and its costs were separately incurred by BBI's counsel, not by the Individual Defendants. Plaintiff has no basis for its argument in that BBI was a separate defendant, which filed its own answer, jury fees, and MSJ making up the entire amount of \$1,100.00.

Item No. 11 (Court reporter fees):

CCP § 1033.5(b)(5) provides that transcripts of court proceedings not ordered by the court are not allowable as costs. (see also, *Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 58 [court reporter fees are a different expense than transcripts].) BBI's MOC contains an amount for "Court reporter fees as established by statute" in the amount of \$4,051.22. Plaintiff challenges the entire amount on the same ground as asserted above regarding filing fees. However, BBI points out that court reporter fees were split 50/50 between Plaintiff and Defendants – Defendants then split their portion 50/50. The invoices were attached. (Dec.Seifen ¶¶ 5-8, Exs. "1" – "4".) As discussed above, Plaintiff has no basis for its argument claiming that BBI's costs are duplicative of the Individual Defendants.

Item No. 14 (Electronic filing and service fees): Under CCP § 1033.5(a)(14), "[f]ees for the electronic filing or service of documents through an electronic filing service provider [are recoverable] if a court requires or orders electronic filing or service of documents." (CCP § 1033.5(a)(14).) Plaintiff challenges \$212.24 claimed by BBI for this item. Plaintiff does not dispute that electronic filing was mandated, but contends that the fees are duplicative because the Individual Defendants may have already claimed them. However, BBI asserts that it was required to electronically file and serve its papers throughout this litigation and that the costs claimed are NOT duplicative nor do they overlap with those already sought by the Individual Defendants.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTERS

CASE #	CASE NAME	HEARING NAME
		TAHIR'S RESPONSES TO FORM INTERROGATORIES, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR SPECIAL INTERROGATORIES, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR REQUEST FOR ADMISSIONS, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT JEFFREY LEMASTERS TAHIR'S RESPONSE TO REQUEST FOR ADMISSIONS, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT JEFFREY LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR SPECIAL INTERROGATORIES, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT JEFFREY LEMASTERS TAHIR'S RESPONSES TO FORM INTERROGATORIES, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT JEFFREY LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Tentative Ruling: Plaintiff's Motions to Compel Responses to Requests for Production (Set One), Responses to Form Interrogatories (Set One), Responses to Special Interrogatories (Set One), Responses to Special Interrogatories (Set One), Responses to Special Interrogatories (Set One), and Responses to Form Interrogatories (Set One) are granted.

As to Plaintiff's Motion to Compel Responses to Requests for Admissions (Set One), it is denied.

As to Sanctions, it is awarded to Plaintiff AGAINST Defendants, JEFFREY LEMASTERS TAHIR and MARY ELIZABETH LEMASTERS TAHIR, in the reasonable reduced amount of \$900.00 (3 hours at \$300 per hour).

CCP §2030.290(b) provides that if a party fails to respond to an interrogatory request "[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories." (CCP §2030.290.)

The declaration of City's counsel reflects that responses to the discovery were not served. Further, the meet and confer letter attached to the declaration reflects that after the alleged responses were mailed, City was inquiring when responses would be provided, which validates the City's position that responses were never received. The opposition to the motion fails to provide any evidence to the contrary. Accordingly, the court should grant the motion to compel responses to Special Interrogatories (Set One) numbers 1 – 35.

There is no provision in the discovery code for compelling a party to respond to RFAs, rather, the code provides that if the party to whom the requests are directed fails to timely respond, the "requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for a monetary sanction...." (CCP §2033.280(b).) Nor does Defendant cite any specific provision that gives this court authority to compel response to RFAs. Rather, Plaintiff's only recourse was a motion to deem admissions admitted, pursuant to CCP §2033.280, which is cited by Plaintiff in its motion.

Sanctions:

The motion seeks sanctions of \$1,500 pursuant to CCP section 2023.030 and 2030.300. "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.... If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (italics added.) (CCP §2023.030(a).) CCP §2023.010 sets forth conduct that constitutes misuses of the discovery process, which includes "[f]ailing to respond or to submit to an authorized method of discovery." (CCP §2023.010(d).)

"[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or

opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP §2031.300.) Here, the court has not been provided a basis upon which to find that Defendant acted with substantial justification or that other circumstances make the imposition of a sanction unjust.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504523	BROWN VS EQUITY LIFESTYLE PROPERTIES, INC.	ANTI-SLAPP MOTION

Tentative Ruling: Defendant MHC Thousand Trails Limited Partnership’s Special Motion to Strike is granted as to the 8th through 11th causes of action in full; as to the portions of the 13th through 17th causes of action and claims for damages, it is granted.

Defendant’s request for attorney fees at the reasonably reduced rate of \$2,400.00 is granted, payable to defense counsel within 30 days.

The Legislature enacted the anti-SLAPP procedure due to “a disturbing increase in lawsuits brought primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (C.C.P. § 425.16(a).) It is a two-step process where the moving defendant has the burden to first establish that the allegations or claims arise from protected activity, and then the plaintiff has the burden to demonstrate that the claim has minimal merit. (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

Moving Party’s Burden

The moving party bears the initial burden of showing that the action falls within the class of suits subject to the special motion to strike. (*Wilcox v. Superior Court* (1994) 17 Cal.App.4th 809, 819.) A defendant is required to make a prima facie showing that plaintiff’s suit arises from any act of defendant in furtherance of his right to petition or his right of free speech under the federal or state constitution in connection with an issue of public interest. (C.C.P. § 425.16(e); *Equilon Enterprises v. Consumer Cause* (2002) 29 Cal.4th 53, 67.) The act that forms the basis for the plaintiff’s cause of action must itself have been an act in furtherance of the right of petition or free speech. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76-78.)

A defendant may meet this burden by showing that the act that forms the basis for the plaintiff’s suit was: (1) any written or oral statement made before a legislative, executive or judicial proceeding; (2) a statement or writing made in connection with an issue under consideration in such a proceeding or “any other official proceeding authorized by law;” (3) any written or oral statement made in a place open to the public or a public forum in connection with an issue of public interest; or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with an issue of public interest. (C.C.P. § 425.16(e).) A defendant must

show the conduct underlying the cause of action fits into one of those four categories. (*Century 21 Chamberlain & Associates v. Haberman* (2009) 173 Cal.App.4th 1, 7.)

“The anti-SLAPP statute’s definitional focus is not the form of the plaintiff’s cause of action but, rather, the defendant’s *activity* that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92, *original emphasis*.)

“The prosecution of an unlawful detainer action indisputably is protected activity within the meaning of section 425.16.” (*Feldman v. 1100 Park Lane Associates* (2008) 160 Cal.App.4th 1467, 1479-1480, quoting *Birkner v. Lam* (2007) 156 Cal.App.4th 275, 281-285.) Here, Defendant seeks to strike the entire TAC with prejudice, arguing that it is premised upon Defendant’s prosecution of the UD Action, which is protected activity. Alternatively, Defendant seeks to strike the 8th through 11th and 13th through 17th causes of action, as well as claims for damages arising from relocation expenses and loss of possession of Site 400, which it argues are premised upon the underlying UD Action.

Special Motion to Strike the Entire TAC

To prevail on its special motion to strike the entire TAC, Defendant must establish that the entire complaint arises out of its protected activity. “Arising from” means that the defendant’s act underlying the plaintiff’s causes of action must *itself* have been an act in furtherance of the right of petition or free speech. (*City of Cotati, supra*, 29 Cal.4th at 78.) In other words, “the critical consideration is whether the cause of action is *based on* the defendant’s protected free speech or petitioning activity.” (*Navellier, supra*, 29 Cal.4th at 89.)

Whether the anti-SLAPP statute applies is determined by the “principal thrust or gravamen” of the plaintiff’s claims; it cannot be invoked where the allegations of protected activity are only *incidental* to a cause of action based on nonprotected activity. (*Martinez v. Metabolife Int’l, Inc.* (2003) 113 Cal.App.4th 181, 187.) “If the core injury-causing conduct on which plaintiff’s claim is premised does not rest on protected speech, collateral or incidental allusions to protected activity will not trigger application of the anti-SLAPP statute.” (*Trilogy at Glen Ivy Maintenance Assn. v. Shea Homes, Inc.* (2015) 235 Cal.App.4th 361, 368 [*citing Martinez, supra*, 113 Cal.App.4th at 189].) “To determine the applicability of . . . the anti-SLAPP statute, [courts] look to the gravamen of the instant action. . . . [T]he gravamen of an action is the *allegedly wrongful and injury-producing conduct*, not the damage which flows from said conduct.” (*Renewable Resources Coalition, Inc. v. Pebble Mines Corp.* (2013) 218 Cal.App.4th 384, 387 [*original emphasis*]; *accord Trapp v. Naiman* (2013) 218 Cal.App.4th 113, 121.

Defendant argues that the TAC’s references to “housing decisions,” “refusal to continue Plaintiff’s housing arrangement,” refusal of Plaintiff’s tenders of payment, requirement that Plaintiff “vacate the Campground,” and loss of possession of Site 400 arise from the UD Action, which is protected activity. (Motion, pp. 2-4.) However, the TAC is not entirely premised on Plaintiff’s loss of housing claims. Rather, the TAC sets forth allegations of wrongful termination and disability discrimination, which then resulted in the loss of employee housing. For example, Plaintiff’s first and third causes of action for

retaliation allege that in addition to refusing to continue her housing situation, Defendants' materially adverse employment actions also included terminating Plaintiff's employment and cancelling her TT membership. (TAC, ¶¶ 136 and 153.) Plaintiff's second cause of action for wrongful termination only references Plaintiff's housing claims in the context of incidental damages, i.e., the loss of employment-related housing and disruption of her established residence. (TAC, ¶¶ 146.)

Accordingly, the Court denies the special motion to strike the entire TAC because the principal thrust or gravamen of the TAC does not arise from the protected UD Action.

Motion to Strike Portions of the TAC

Here, the Court considers this a *Baral* motion that strikes specific causes of action and references to protected activity. In *Baral*, the court held that a special motion to strike could be used both to attack an entire pleading or entire causes of action, and to target specific paragraphs, words and phrases. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393.)

"At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court, without resolving evidentiary conflicts, must determine whether the plaintiff's showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken. Allegations of protected activity supporting the stricken claim are eliminated from the complaint, unless they also support a distinct claim on which the plaintiff has shown a probability of prevailing." (*Baral, supra*, 1 Cal.5th at 396.)

"[W]hile courts may strike less than the entirety of a complaint or pleaded cause of action, the trial court is not required to take on the burden of identifying the allegations susceptible to a special motion to strike. If a defendant wants the trial court to take a surgical approach, whether in the alternative or not, the defendant must propose where to make the incisions. This is done by identifying, in the initial motion, each numbered paragraph or sentence in the complaint that comprises a challenged claim and explaining 'the claim's elements, the actions alleged to establish those elements, and wh[y] those actions are protected.' [Citation.]" (*Park v. Nazari* (2023) 93 Cal.App.5th 1099, 1109.)

Defendant seeks to specially strike the following from the TAC: the 8th through 11th causes of action (housing discrimination, housing retaliation, housing accommodation, and housing interactive process) because they are premised on the denial of continued occupancy through the termination notice and the UD Action proceedings (TAC, ¶¶ 194-224); the 13th and 14th causes of action (breach of contract and breach of the implied covenant) to the extent they are premised on Defendants' refusal of Plaintiff's tenders of payment and direction that she vacate the premises (TAC, ¶¶ 238-243, 252); the 15th through 17th causes of action (interference and IIED claims) to the extent they premised on the loss of use and possession of Site 400 (TAC, ¶¶ 263, 274, 284); and the

allegations seeking relocation expenses and damages flowing from the loss of possession of Site 400 (TAC, ¶ 88, 117 118, 124; Prayer ¶ 2).

8th Through 11th Causes of Action

The TAC's 8th through 11th causes of action are: (8) Housing Discrimination in Violation of FEHA (Gov. Code § 12955 et seq.); Housing Retaliation in Violation of FEHA (Gov. Code § 12955(f), (l), et seq.); (10) Failure to Provide Reasonable Housing Accommodation (Gov. Code § 12955 et seq.); and (11) Failure to Engage in the Good Faith Housing Interactive Process (Gov. Code § 12955 et seq.).

The TAC expressly states that these causes of action are based on Plaintiff's requests for continued occupancy after her employment was terminated, specifically her "post-employment housing rights, Defendants' refusal to permit continued annual occupancy, refusal to accept Plaintiff's repeated tenders of payment, cancellation of Plaintiff's membership, and related housing decisions." (TAC, ¶ 194, 203, 211, 219.)

Defendant argues that its refusal to accept Plaintiff's "repeated tenders of payment" and refusal to permit continued occupancy constitutes protected prelitigation activity related to its efforts to recover possession of Site 400 through the UD Action. Indeed, "[t]he litigation privilege extends to prelitigation communications relating to litigation that is contemplated in good faith and under serious consideration." (*Newport Harbor Offices & Marina, LLC v. Morris Cerrullo World Evangelism* (2018) 23 Cal.App.5th 28, 45.) Accordingly, Defendant satisfies the first prong of the anti-SLAPP analysis by establishing that the 8th through 11th causes of action arise from protected activity.

13th and 14th Causes of Action

The TAC's 13th and 14th causes of action for breach of contract and breach of the implied covenant of good faith and fair dealing allege that Defendant breached the contract and covenant when it "refused to accept Plaintiff's tender, refused to permit Plaintiff to continue occupying Site 400 as a paying annual resident, refused to honor the representations previously made concerning Plaintiff's continued occupancy, and instead directed Plaintiff to vacate the campground and advised that she would not be permitted to return to the Idyllwild Campground, including under her previously existing membership rights." (TAC, ¶ 240, 243, 252.) Accordingly, these actions and omissions arise directly from Defendant's UD Action proceedings. Thus, Defendant has satisfied the first prong as to the 13th and 14th causes of action.

15th through 17th Causes of Action

Here, the TAC's 15th and 16th causes of action for intentional interference with prospective economic advantage and contractual relations allege that Defendant interfered with Plaintiff's existing contractual relationships and business ventures by, in part, "refusing to honor prior agreements concerning Plaintiff's continued occupancy of Site 400" and "refusing Plaintiff's repeated tenders of payment for continued annual occupancy." (TAC, ¶ 263 and 274.) As noted above, these allegations arise from the protected UD Action proceedings.

However, Plaintiff also sets forth other allegations regarding interference that are unrelated to the UD Action, including "obstructing or delaying guest access; interfering

with invited business guests, scheduled commercial meetings, and business visitors; obstructing ingress and egress to Site 400; refusing or delaying guest services necessary for Plaintiff's business activities; and engaging in additional operational conduct alleged throughout this Complaint that disrupted Plaintiff's ongoing commercial relationships and prospective economic advantages." (TAC, ¶¶ 263 and 274.) Defendant recognizes that these allegations are not protected, and accordingly, seeks to strike statements from ¶¶ 263 and 274 "to the extent premised on the loss of use and possession of Site 400."

Defendant seeks to strike similar allegations from the 17th cause of action for IIED, specifically ¶¶ 284, which states in full: "Plaintiff alleges that this continuing course of conduct included the alleged retaliation for Plaintiff's protected activities; termination of her employment; refusal to honor prior representations concerning her continued occupancy of Site 400; refusal to accept Plaintiff's repeated tenders for continued annual occupancy; cancellation of Plaintiff's membership; repeated operational interference affecting Plaintiff's residence and business activities; interference with invited guests and business visitors; obstruction of access; repeated failures to respond to Plaintiff's requests for assistance and corrective action; and the additional conduct alleged throughout this Complaint." Here, the allegations regarding Defendant's "refusal to honor prior representations concerning her continued occupancy of Site 400; refusal to accept Plaintiff's repeated tenders for continued annual occupancy; cancellation of Plaintiff's membership;" arise from the protected UD Action.

Thus, Defendant meets the first prong as to the specific allegations in the 15th through 17th causes of action that arise from the loss of use and possession of Site 400.

Damages re: Relocation Expenses and Loss of Possession of Site 400

Lastly, Defendants seek to strike the TAC's allegations that seek relocation expenses and damages flowing from the loss of possession of Site 400, specifically ¶¶ 88, 117, 118, and 124, and Prayer, ¶ 2. Here, Plaintiff's loss of possession of Site 400 and subsequent relocation arise from the UD Action. Accordingly, Defendants have met the first prong as to these specific allegations.

As noted in the analyses to the first and second causes of action, Defendants' initiation, prosecution, and post-judgment enforcement of the UD Action, including obtaining the writ of execution and levying upon the default judgment, all constitute protected activities. Accordingly, Defendants have established that the third cause of action meets the first prong.

Opposing Burden of Proof

The opposing party now has the burden of proof to establish a probability that they will prevail on whatever claims are asserted against the defendant. (C.C.P. § 425.16(b).) The "probability of prevailing" is tested by the same standard governing a motion for summary judgment, i.e., in opposing an anti-SLAPP motion, and it is plaintiff's burden to make a prima facie showing of facts that would support a judgment in plaintiff's favor. (*Taus v. Loftus* (2007) 40 Cal.4th 683, 714.) As noted above, once the defendant demonstrates that a claim "arises from" defendant's exercise of free speech or petition rights, the burden shifts to the plaintiff to establish a "probability" that it will prevail on

whatever claims are asserted against the moving defendant. (C.C.P. § 425.16(b).) The plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment. (*Navellier, supra*, 29 Cal.4th at 89, 93.)

Filing an unlawful detainer complaint is unquestionably protected activity under the first prong analysis of the anti-SLAPP statute. (*Birkner v. Lam* (2007) 156 Cal.App.4th 275, 282; *Feldman v. 1100 Park Lane Associates* (2008) 160 Cal.App.4th 1467, 1480.) Additionally, a plaintiff cannot establish a probability of prevailing on a claim if the conduct or communications at issue are protected by the litigation privilege. (*Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP* (2017) 18 Cal.App.5th 95, 115.) The litigation privilege applies to any communication: (1) made in judicial or quasi-judicial proceedings, (2) by litigants or other participants authorized by laws, (3) to achieve the objectives of the litigation, and (4) that have some connection or logical relation to the action. (*Gallanis-Politis v. Medina* (2007) 152 Cal.App.4th 600, 616-617.) The privilege is held to be absolute in nature. (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 215.)

8th through 11th, 13th, and 14th Causes of Action

Here, Plaintiff fails to meet her burden to show that the TAC overcomes Defendants' absolute defense of litigation privilege, including prelitigation activities conducted in contemplation of the UD Action, as to the 8th through 11th and 13th and 14th causes of action. Plaintiff argues it is Defendant's conduct, rather than the UD Action or prelitigation communications, that give rise to this lawsuit. However, the only examples given to support this conclusion are in connection with the prosecution of the UD Action. Specifically, as noted above, the 8th through 11th causes of action are based on Defendant's denial of Plaintiff's requests for continued occupancy after her termination. Plaintiff contends that her 13th and 14th causes of action for breach of contract and the implied covenant of good faith and fair dealing are based upon Defendant's breach of its prior representation that Plaintiff could occupy Site 400 after her seasonal employment. (Opp., p. 14.)

However, Plaintiff's own evidence shows that Defendant's prelitigation activity in furtherance of the UD Action commenced on the date that Plaintiff was terminated. Specifically, Plaintiff's declaration confirms that she was terminated on May 30, 2025, and that same day, was given 7 days to vacate Site 400. (Brown Decl., Exhs. A-3 and A-4.) On June 10, 2025, Stewart rejected Plaintiff's offer of payment for Site 400, informed Plaintiff that Defendants would not be extending an annual lease for Site 400 to her, and repeated that she needed to vacate the site and property. (Brown Decl., Exh. A-6.) On June 11, 2025, Plaintiff was reminded that she was due to vacate by June 6, 2025. (*Id.*). On June 18, 2025, Plaintiff was served a 30 Day Notice of Termination of Tenancy. (Brown Decl., Exh. D-1.)

Defendant contends that the refusal of Plaintiff's payments and 30 Day Notice were prelitigation activity in furtherance of the protected UD Action. Plaintiff argues that the wrongful conduct is the refusal to honor the earlier agreement to offer Site 400 after her employment, not the communications themselves. (Opp., pp. 14-15.) However, this is a distinction without a difference, especially as "conduct alleged to constitute a breach of

contract may also come within the statutory protections for protected speech or petitioning.” (*Feldman, supra*, 160 Cal.App.4th at 1483-1484.) Thus, the litigation privilege applies to protect Defendant’s prelitigation conduct. Since the privilege is absolute, Plaintiff cannot establish a probability of prevailing on these claims against Defendant. (See *Optional Capital, supra*, 18 Cal.App.5th at 115.)

Accordingly, the Court grants the motion to strike as to Plaintiff’s 8th through 11th causes of action because they arise from protected activities and Plaintiff failed to meet his opposing burden.

15th through 17th Causes of Action; Damages

As to the 15th and 16th causes of action for interference, Plaintiff alleges that her claims are also based on unprotected activities. (Opp., pp. 15-16.) However, Defendant acknowledges this and seeks to strike only certain portions of these causes of action that are protected by the litigation privilege.

Plaintiff’s Opposition does not address the specific allegations that the Defendant seeks to strike from the 15th through 17th Causes of Action, nor does Plaintiff address the allegations of relocation expenses and damages that Defendant seeks to strike. As noted above, Plaintiff has not established a probability of prevailing on allegations of conduct or communications protected by the litigation privilege, such as the statements “premised on the loss of use and possession of Site 400” that Defendant seeks to strike from the 15th through 17th Causes of Action, damages, and Prayer.

Thus, the Court grants the motion to strike as to the following portions of the TAC: ¶ 88 [“housing” and “possession of Site 400”]; ¶ 117 [“loss of employment-related housing,” and “relocation expenses”]; ¶ 118 [“loss of her employment-related housing at Site 400, disruption of her residence...interruption of her established living arrangements, loss of the anticipated annual residential occupancy of Site 400, and additional expenses incurred to relocate, preserve her property, and mitigate the disruption to her residence...”]; ¶ 124 [to the extent Plaintiff seeks damages flowing from the loss of possession of Site 400]; ¶ 240-243 and 252 [with the exception of references to Plaintiff’s membership]; ¶ 263 [“refusing to honor prior agreements concerning Plaintiff’s continued occupancy of Site 400; refusing Plaintiff’s repeated tenders of payment for continued annual occupancy”]; ¶ 274 [“refusing to honor prior agreements concerning Plaintiff’s continued occupancy of Site 400, refusing Plaintiff’s repeated tenders of payment”]; ¶ 284 [“refusal to honor prior representations concerning her continued occupancy of Site 400; refusal to accept Plaintiff’s repeated tenders for continued annual occupancy”]; Prayer, ¶ 2 [“loss of employment-related housing,” and “relocation expenses”].

Attorney Fees

A prevailing defendant on an anti-SLAPP motion shall be entitled to recover their attorney fees and costs. (C.C.P. § 425.16(c).) Any fee award is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.)

Here, Defendant seeks \$2,700.00 in attorney fees for filing and defending this motion, calculated as 9.0 hours at a rate of \$300.00/hour. The hourly rate is reasonable.

However, Defendant seeks 2.0 hours for appearing at the hearing on this motion. The Court strikes 1.0 hour from the expended time, and award \$2,400.00 [8.0 hours x \$300.00/hour].

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505479	FABIE VS HYUNDAI MOTOR AMERICA	DEMURRER

Tentative Ruling: Defendant's Demurrer is sustained without leave to amend.

REQUEST FOR JUDICIAL NOTICE

Defendant asks the Court to take judicial notice of (1) Plaintiff's original Complaint, filed 8/20/25; (2) Plaintiff's counsel declaration, her opposition to the demurrer to the FAC, filed 5/7/26; and (3) the fact that Defendant opted in to C.C.P. §§ 871.20-871.30. Plaintiff does not object, and these facts/documents are the proper subject of judicial notice. (Evid. Code § 452(d), (h).) Accordingly, the request is granted.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

CAUSES OF ACTION (1ST-5TH) - THE STATUTE OF LIMITATIONS.

C.C.P. 871.20, effective January 1, 2025, "applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty." (C.C.P. § 871.20.) Judicially noticeable facts show that Defendant elected to proceed under C.C.P. §§ 871.20 et. seq. [RFJN iso Reply, Ex. B], and Plaintiff seeks restitution or replacement of the Vehicle in this action [see, SAC at ¶¶ 18, 26, Prayer at ¶ B], so this is an action covered by C.C.P. § 871.20.

C.C.P. § 871.21 provides the time in which such an action must be filed. It states as follows:

- (a) An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.

(b) *Notwithstanding subdivision (a)*, an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.

(C.C.P. § 871.21 (a)-(b) [emphasis added].)

Defendant argues that because the Vehicle was originally delivered in 2016, and Plaintiff did not bring this action until 2025, it is barred by the statute of limitations set forth in C.C.P. § 871.21. The Court overruled Defendant's prior demurrer on this basis, finding that while it appeared the claims were barred, it was not clear from the FAC that they were definitively barred by C.C.P. § 871.21(b). However, in the SAC, Plaintiff now alleges that the Vehicle was initially offered for sale on February 5, 2016. (SAC at ¶ 10.) Plaintiff argues that being "initially offered for sale" is not the same as "the date of original delivery" for purposes of triggering the statute of limitations. However, "tender of delivery" of a vehicle means the same thing as the purchase/sale of the vehicle. (See, *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1306.) Thus, by alleging that the Vehicle was initially offered for sale on February 5, 2016, Plaintiff does, in fact, state in her SAC that February 5, 2016 was "the date of original delivery." As August 20, 2025 (the date the action was filed) is 9 1/2 years after the date of original delivery, and C.C.P. § 871.21(b) requires any action seeking restitution or replacement of a vehicle to be filed within 6 years, Plaintiff's Song Beverly Act claims are barred by the statute of limitations set forth in C.C.P. 871.21.

Plaintiff argues that her claims are not barred because the warranties issued with the Vehicle did not expire until late 2025 and February 2026. (Opposition, pp. 6:21-7:17.) While Plaintiff is correct that C.C.P. § 871.21(a) states that "[a]n action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty," subsection (b) states that "*notwithstanding subdivision (a)*," such an action must be brought within 6 years of original delivery. (C.C.P. § 871.21(a)-(b) [emphasis added].) Notwithstanding means "despite" or "in spite of what has just been said or expressed." (<https://www.merriam-webster.com/dictionary/notwithstanding>.) Thus, while an action for restitution or replacement of a vehicle must be brought within one year of the expiration of the applicable warranty, it must also be brought within 6 years of the date the vehicle was originally delivered/sold. Therefore, contrary to Plaintiff's contention, regardless of when the applicable warranties expired, her action was required to be filed within 6 years of the initial delivery/sale of the Vehicle, and it was not.

Plaintiff also argues that even if the 6-year statute of limitations applies, it was tolled while repairs were made to the Vehicle, and she did not discover the defects until late 2024. (Opposition, pp. 8:13-10:12.) C.C.P. § 871.21(c) states: "The time periods prescribed in subdivisions (a) and (b) shall be tolled as follows: (1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable. (2) For the time the motor vehicle is out of service by reason of repair for any nonconformity. (3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days." (*Ibid.*) None of these sections for tolling applies here.

First, Civ. Code § 1793.22(c), which applies to third-party dispute resolution procedures, states that “[a]ny period of limitation of actions under any federal or California laws with respect to any person *shall be extended for a period equal to the number of days between the date a complaint is filed with a third-party dispute resolution process and the date of its decision or the date before which the manufacturer or its agent is required by the decision to fulfill its terms if the decision is accepted by the buyer, whichever occurs later.*” (Civ. Code § 1793.22(c) [emphasis added].) In the SAC, Plaintiff alleges that in February 2025, she made a written request to Defendant for repurchase or replacement of the Vehicle; Defendant denied the request and directed Plaintiff to Defendant’s third-party dispute resolution program; on August 6, 2025, Plaintiff filed a claim with the third-party dispute resolution program; and on August 7, 2025, that claim was denied. (SAC at ¶¶ 18-19.) First and foremost, the statute of limitations had already expired by the time Plaintiff filed her claim with Defendant’s third-party dispute resolution program, so doing so could not revive the expired claims. Additionally, Plaintiff acknowledges that her claim was denied within 1 day, so even if the limitations period could be tolled, the 1 additional day is of no assistance to Plaintiff.

The limitations period is also tolled for “the time the motor vehicle is out of service by reason of repair for any nonconformity.” (C.C.P. § 871.21(c)(2).) Plaintiff alleges in the SAC that she first delivered the Vehicle to Defendant’s authorized repair facility on November 29, 2024, and it was returned on November 30, 2024 (1 day); she again delivered the Vehicle to Defendant’s authorized repair facility on December 3, 2024, and it was returned on December 13, 2024 (10 days); and thereafter, she delivered the Vehicle to Defendant’s authorized repair facility on December 14, 2024, and it was returned on January 28, 2025 (45 days). (SAC at ¶¶ 15-16.) This results in a total of 56 out of service days, which also does not assist Plaintiff because (1) all of the repair visits occurred after the limitations period already expired, and (2) the action was filed 3 1/2 years after the statute of limitations on Plaintiff’s claims ran, so tolling of 56 days still does not bring the claims within the limitations period.

Finally, the limitations period is tolled for “the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24,” up to 60 days. (C.C.P. § 871.21(c)(3).) As with the above, tolling the statute of limitations for 60 days, when the action was filed 3 1/2 years after the limitations period expired, does not bring the claims within the statute of limitations period.

Plaintiff’s awareness of the defects, in cases discussing the statute of limitations on Song Beverly Act claims prior to the enactment of C.C.P. § 871.20 et. seq., California courts have held that limitation period runs “from the date the goods are delivered (regardless of the date the buyer discovers the breach)...” (*Cardinal Health 301, Inc. v. Tyco. Electronics Corp.* (2008) 169 Cal.App.4th 116, 129; see also, *Mexia, supra*, 174 Cal.App.4th at 1305-1306.) There is no reason this same rule should not apply to the statute of limitations set forth in C.C.P. § 871.21. Therefore, Plaintiff’s Song Beverly Act claims are barred by the statute of limitations.

She argues that C.C.P. § 871.21 does not apply to the claims for implied warranty and availability of service-literature/part. However, C.C.P. § 871.21 provides the timeframe

for when “an action covered by Section 871.20” must be brought, and C.C.P. § 871.20 states that it “applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.” (C.C.P. § 871.20.) These sections do not state that they apply to specific Song Beverly Act claims, but instead to “an action brought against a manufacturer” in which the purchaser seeks “restitution or replacement of a motor vehicle” pursuant to the Song Beverly Act. The action filed by Plaintiff is such an action. (See, SAC at ¶¶ 18, 26, Prayer at ¶ B.) Accordingly, C.C.P. §§ 871.20 and 871.21 apply to all of Plaintiff’s Song Beverly Act claims, and these claims are clearly barred by the statute of limitations based on the allegations of the SAC. Accordingly, the demurrer is sustained. (*Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 321; *Lockley v. Law Office of Cantrell, Green, Kekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881; *Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.)

As there is no reasonable possibility that these defects can be cured. (*Silva v. Block* (1996) 49 Cal.App.4th 345, 349; see also, *T.H. v. Novartis Pharmaceuticals Corp.* (2017) 4 Cal.5th 145, 162, 226 Cal.Rptr.3d 336, 407 P.3d 18; *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145.)

MMWA (6TH-8TH) CAUSES OF ACTION

Defendant argues that since Plaintiff has no viable Song Beverly Act claim, her MMWA claim is also precluded.

“Magnuson-Moss governs warranties for consumer products distributed in interstate commerce. It requires disclosures in connection with written warranties, regulates the substantive content of warranties, and establishes a federal cause of action for breach of a written or an implied warranty (15 U.S.C. § 2310(d)), among other provisions. Magnuson-Moss does not substitute federal law for state law of consumer product warranties, but instead supplements state law.” (*Orichian v. BMW of N. Am., LLC* (2014) 226 Cal.App.4th 1322, 1330.) “Magnusson-Moss ‘calls for the application of state written and implied warranty law, not the creation of additional federal law,’ except in specific instances in which it expressly prescribes a regulating rule.” (*Daugherty v. American Honda Motor* (2006) 144 Cal.App.4th 824, 833.) Accordingly, the *Daugherty* court held that the “failure to state a warranty claim under state law necessarily constitute[s] a failure to state a claim under Magnuson-Moss.” (*Id.*; see also, *Arana v. Tesla Motors, Inc.* (C.D. Cal. 2023) 2023 WL 1796956 [“Defendant avers that MMWA claims rise or fall with underlying state-law claims, and because Plaintiff’s SBA claim fails, so must his MMWA claim. The Court agrees”]; *Hastings v. Ford Motor Company* (S.D. Cal. 2020) 495 F.Supp.3d 919, 923 [“Where, as here, a plaintiff sues under the Magnuson-Moss Warranty Act to challenge the defendant’s alleged breach of its warranties under state law, ‘the claims under the Magnuson-Moss Act stand or fall with [the plaintiff’s] express and implied warranty claims under state law’”]; *Clemens v. DaimlerChrysler Corp.* (9th Cir. 2008) 534 F.3d 1017, 1022 [“The district court held—and Clemens does not dispute—that the claims under the Magnuson–Moss Act stand or

fall with his express and implied warranty claims under state law. Therefore, this court's disposition of the state law warranty claims determines the disposition of the Magnuson–Moss Act claims]; *In re Toyota Motor Corp. Unintended Acceleration Mktg., Sales Pracs., & Prods. Liab. Litig.* (C.D. Cal. 2010) 754 F.Supp.2d 1145, 1188 [“Defendants and Plaintiffs agree that Plaintiffs’ claims pursuant to the [MMWA are] ... dependent upon their state-law warranty claims.”]; and *Lathrop v. Thor Motor Coach, Inc.* (2024) 105 Cal.App.5th 808, 823 [while the MMWA “establishes a federal cause of action for breach of a written or an implied warranty,” it “does not substitute federal law for state law of consumer product warranties, but instead supplements state law.”].) Here, Plaintiff’s MMWA claims fail because Plaintiff has stated no viable state law breach of warranty claim.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506426	HUDIBURGH VS NGUYEN	MOTION TO BE RELIEVED AS COUNSEL FOR HUONG GIANG NGUYEN

Tentative Ruling: Defendant HUONG GIANG NGUYEN’s Counsel’s Motion to be Relieved as counsel is granted.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2601557	CATANZARITE VS COUNTY OF RIVERSIDE	MOTION TO STRIKE

CASE #	CASE NAME	HEARING NAME
CVRI2601557	CATANZARITE VS COUNTY OF RIVERSIDE	DEMURRER

Tentative Ruling: Defendant County of Riverside’s UNOPPOSED Demurrer as to the 2nd Cause of Action is sustained with leave to amend within 20 days.

As to the Motion to Strike it is granted; specifically, Page 4, line 1: “and attorney’s fees,” and Page 11, line 5: “and attorney’s fees.”

In the absence of an opposition, the Court is entitled to consider the lack of response as an admission that the motion is meritorious (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20). Because Petitioner has not briefed any issues in opposition, the Court deems any potential arguments against the set-aside to have been abandoned (*Arnold v. Dow Chemical Co.* (2001) 91 Cal.App.4th 698, 729).